UNITED STATES BANKRUPTCY COURT
SOUTHERN DISTRICT OF IOWA

In re: FOODS, INC. dba DAHL'S FOODS Debtor and Debtor in Possession. **FOODS, INC. dba DAHL'S FOODS,** Debtor and Debtor in Possession. 4343 Merle Hay Road Des Moines, IA 50310 EIN: 42-0803702	Case No. 14-02689 Chapter 11 **FIRST DAY MOTION** Hon. **DEBTOR'S EMERGENCY MOTION FOR ORDER AUTHORIZING DEBTOR TO HONOR PRE-PETITION OBLIGATIONS TO EMPLOYEES AND BRIEF IN SUPPORT** No Hearing Set

Foods, Inc. dba Dahl's Foods ("Debtor" or "Dahl's"), debtor and debtor-in-possession herein, by and through its proposed General Reorganization Counsel, Jeffrey D. Goetz, Esq. of the law firm of Bradshaw, Fowler, Proctor and Fairgrave, P.C., and pursuant to the provisions of Bankruptcy Code Sections 105(a), 364(b), 365, 507(a)(4), and 1107 and Bankruptcy Rule 4001, respectfully moves for entry of an Order authorizing Debtor (i) to pay prepetition accrued employee wages, salaries, commissions, related taxes and reimbursable expenses; (ii) to honor certain employee benefit obligations; and (iii) to honor all other terms and conditions of its employees' employment obligations (the "Motion"). Counsel for Debtor has consulted with counsel for Debtor's primary secured lender, Associated Wholesale Grocer ("AWG") and is authorized to state that AWG does not object to the relief requested. In support of this Motion, Debtor shows the Court as follows:

I. JURISDICTION AND STATUTORY PREDICATE

1. This Court has jurisdiction of this Motion pursuant to 28 U.S.C. Sections 157 and 1334. Venue of this case and Motion in this district is proper pursuant to 28 U.S.C. Sections 1408 and 1409. Consideration of this Motion is a core proceeding pursuant to 28 U.S.C. Section 157(b).

I. JURISDICTION AND STATUTORY PREDICATE

1. This Court has jurisdiction of this Motion pursuant to 28 U.S.C. Sections 157 and 1334. Venue of this case and Motion in this district is proper pursuant to 28 U.S.C. Sections 1408 and 1409. Consideration of this Motion is a core proceeding pursuant to 28 U.S.C. Section 157(b).

2. The statutory predicates for the relief sought herein is 11 U.S.C. Sections 105(a), and 507.[1]

II. BACKGROUND

3. On November 9, 2014 (the "Petition Date"), the Debtor filed its voluntary petition for relief under chapter 11 of the Bankruptcy Code.

4. In addition to the facts set forth below, this Motion is supported by, and the Debtor incorporates by reference herein, the Declaration of Craig Moore, Chief Executive Officer, in Support of First Day Motions.

5. Debtor continues in possession of its properties and the management of its businesses as a Debtor-in-possession pursuant to Sections 1107 and 1108 of the Bankruptcy Code.

6. Counsel for Debtor has consulted with counsel for AWG and is authorized to state that AWG does not object to the relief requested.

7. Dahl's offers a wide selection of national brand and private-label products as well as high quality produce, meat and general merchandise. Dahl's operates 10 stores. The Company's stores generally are open 7 days per week and evenings.

8. Immediately prior to the Petition Date, Dahl's employed approximately over 850 individuals in its 10 stores of operation. With the exception of corporate and administrative personnel, all of the employees work in Dahl's retail operations.

A. Employee Prepetition Payroll, Vacation and Sick Leave Policies.

9. Dahl's employees are paid biweekly. Dahl's has paid its employees for the last pay period ending on November 1, 2014 and paid on November 7, 2014. There will be accrued but unpaid wages and salaries owing for November 2, 2014 through the petition date in an amount not to exceed $300,000, to be paid on November 21, 2014.

10. In addition, Dahl's has various employee benefit programs including vacation, sick leave, vacation policies, holiday pay and other accrued compensation and some employees have accrued rights to time away from work under those policies. Dahl's seeks permission to honor those policies. Dahl's does not pay for un-accrued vacation or sick leave days so employees would simply have the

[1] All references to sections or codes, unless otherwise noted, are made to the United States Bankruptcy Code, 11 U.S.C. §§ 101 *et seq.* and referred to herein as the "Bankruptcy Code".

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leaves Dahl's employment. Dahl's estimates that the amount Dahl's may owe for pre-petition obligations related to its Medical Flexible Spending Accounts is $26,548.49.

B. Employee Prepetition Medical/Dental Claims and Other Employee Benefits.

C. 401(k) Claims and Contributions.

13. Dahl's also maintains a 401(k) plan known as the Dahl's 401(k) Plan (the "Plan"). Eligible employees authorize Dahl's to withhold from their checks, certain funds to be deposited in the Plan ("Employee 401(k) Withholdings").

D. Employee Withholding Tax Obligations.

14. In connection with its business operations, Debtor withholds certain federal and state income taxes from the wages and the salaries of their employees and also deducts Federal Insurance Contribution Act taxes from the wages and salaries of employees, as well as being required to pay certain taxes and other amounts with respect to their employees ("Employee Taxes").

15. Many of such amounts are "trust funds" that Debtor must hold for the benefit of the relevant federal and state taxing authorities. Failure to report and to remit the Employee Taxes could subject Debtor to substantial interest and penalties, as well as to criminal charges. In addition, Debtor's officers may be personally liable for such amounts in some cases. Debtor estimates that all Employee Taxes have been paid in full as of the Petition Date.

16. Failure to pay the taxes discussed could cause the taxing authorities to take aggressive actions to collect the "trust fund" taxes, including attempts to trace the funds and perhaps cause extensive audits that interfere with Debtor's business. Also, the threat of liability of officers for unpaid "trust fund" taxes would unnecessarily distract officers whose undivided attention is required for the successful outcome of this case. Finally, the failure to pay the Employee Taxes would cause great concern among the work force and disrupt Debtor's

relationship with those employees at a time when it is critical that their focus be upon maintaining Debtor's community confidence.

16. Failure to pay the taxes discussed could cause the taxing authorities to take aggressive actions to collect the "trust fund" taxes, including attempts to trace the funds and perhaps cause extensive audits that interfere with Debtor's business. Also, the threat of liability of officers for unpaid "trust fund" taxes would unnecessarily distract officers whose undivided attention is required for the successful outcome of this case. Finally, the failure to pay the Employee Taxes would cause great concern among the work force and disrupt Debtor's relationship with those employees at a time when it is critical that their focus be upon maintaining Debtor's community confidence.

17. Therefore, Debtor requests authority to pay pre-petition Employee Taxes in connection with Debtor's employee obligations to the extent it is determined that any of such Employee Taxes accrued prior to the Petition Date are in fact unpaid.

18. In addition, from time to time, certain deductions from the employee obligations may be made that principally represent employee earnings that employees or, in the case of garnishments, judicial authorities, have designated for deduction from employee paychecks and paid accordingly (the "Deductions"). The failure to pay these benefits could result in hardship to certain employees. Debtor may receive inquiries from garnishors regarding Debtor's failure to submit, among other things, child support and alimony payments, which are not Debtor's property, but rather have been withheld from employee paychecks.

III. RELIEF REQUESTED

19. Debtor requests by this Motion, entry of an order authorizing Debtor, in accordance with their stated policies, in the ordinary course of their businesses, and in their sole discretion, to (i) pay or honor certain prepetition employee wages, salaries, contractual compensation including commissions, sick pay, vacation pay (including personal days), holiday pay and other accrued compensation; (ii) make payments on amounts owed under accrued and unpaid medical and dental claims and plans; (iii) reimburse prepetition employee business expenses (including travel, lodging, entertainment and other expenses); (iv) make prepetition contributions and pay benefits under the Plan for Employee 401(k) Withholdings; (v) pay all costs and expenses incident to the foregoing payments and contributions (including without limitation, withholding taxes and processing costs); and (vi) other certain related relief as requested in this Motion. In no event does the relief requested

requested in this Motion. In no event does the relief requested herein contemplate the assumption of, or authority to pay, any obligations in respect of contribution and indemnification claims.

20. Prepetition, Dahl's has paid all obligations to its employees on a timely and current basis. Therefore, there are no substantial arrearages accrued and the only outstanding amounts owing to or for the benefit of employees are those accruing due to the timing of payments in the ordinary course of business. Debtor may not pay these employees or reimburse their expenses without prior Court approval.

21. Payment of these amounts is crucial for maintaining employee confidence and morale and will encourage employees to remain in the employ of Debtor at this critical time. To the extent the prepetition Employee Claims have been paid with a check that is outstanding and has not yet cleared Dahl's payroll account or benefits account maintained at Wells Fargo or any other Dahl's account, Dahl's requests that Wells Fargo or any other bank at which an applicable account is maintained be authorized and directed to clear all such prepetition checks and to rely on Dahl's directions as to the payment of such prepetition checks. This request would alleviate the need for Dahl's to reissue payroll and medical benefits checks and would prevent disruption in Dahl's relationship with its employees.

22. By this Motion, Dahl's also seeks authority to honor all other terms and conditions of the employment of their employees as if these chapter 11 cases had not been initiated, pending further orders of this Court.

23. Dahl's is highly dependent on their trained and experienced workforce and the retention of their current workforce is one of Dahl's highest priorities during the continuation of its reorganization and sale process, as described in the Debtor's Motion for Order Approving Auction and Bidding Procedures; Approving Cost and Expense Reimbursement; Prescribing Manner of Notice; and Authorizing Sale of Assets Free and Clear of Liens, Claims, and Encumbrances, Subject to Higher or Better Offers, filed simultaneously with this Motion. Therefore Dahl's ability to maximize the value of its assets for the benefit of the creditors and other parties-in-interest will be adversely affected if Debtor is unable to retain the support and loyalty of its employees.

24. If Dahl's is unable to assure its employees that they will be paid promptly, or if the employees are not immediately assured of uninterrupted, critical benefit payments to which they are

Auction and Bidding Procedures; Approving Cost and Expense Reimbursement; Prescribing Manner of Notice; and Authorizing Sale of Assets Free and Clear of Liens, Claims, and Encumbrances, Subject to Higher or Better Offers, filed simultaneously with this Motion.

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IV. BASIS FOR RELIEF REQUESTED

A. Payment of Pre-Petition Claims is Authorized by the "Necessity of Payment" Doctrine and the Bankruptcy Code.

24. If Dahl is unable to assure its employees that they will be paid promptly, or if the employees are not immediately assured of uninterrupted, critical benefit payments to which they are entitled, Dahl's operations could suffer immediate and irreparable harm due to, at the very least, an undermining of employee morale. Failure to honor any other terms and conditions of their employment would only exacerbate this problem. The relief requested is thus necessary to preserve Dahl's operations during its reorganization and sale process.

25. As a result of these chapter 11 filings, Debtor is prohibited from paying claims that arose prior to the Petition Date without receiving specific authorization. See 11 U.S.C. § 549(a)(2)(B)(2014). Each employee of Dahl's is, however, entitled to a priority claim for compensation earned in the 180-day period preceding the Petition Date in an amount up to $12,475. 11 U.S.C. § 507(a)(4)(2014). Claims on account of Employee Benefits obligations are also entitled to priority. *See* 11 U.S.C. § 507(a)(5)(2014). For each employee benefit plan, the priority claim is limited to an amount equal to the number of employees covered by such plan multiplied by $12,475, minus the sum of (a) the aggregate amount paid to such employees as a priority claim for compensation and (b) the aggregate amount paid by the estate on behalf of such employees to any other employee benefit plan. 11 U.S.C. § 507(a)(5)(2014). Claims for payroll deductions are also entitled to priority. 11 U.S.C. § 507(a)(8)(2014).

26. Because all such administrative expense or priority claims are entitled to be paid in full, immediate payment of such claims at the time appropriate is authorized to grant such relief. See 11 U.S.C. § 105(2014). In addition, in order to retain quality, experienced employees, to maintain their morale while this chapter 11 case is pending and to preserve Dahl's operations during this critical time period, Dahl's should be granted the authority to pay their employees' pre-petition wages.

27. Section 105 of the Bankruptcy Code allows the Court to authorize payments on account of certain pre-petition claims when necessary and essential to the continued operation of the debtor. 11 U.S.C. § 105(2014). This is generally referred to as the necessity of payment doctrine. *In re NVR, L.P.*, 147 B.R. 126, 127 (Bankr. E.D. Va. 1992) (stating that, under Section 105(a), a court

prior to reorganization is essential to the continued operation of the [business] during the reorganization, payment may be authorized even if it is made out of corpus").

28. Similar relief to that requested herein has consistently been granted by other bankruptcy courts pursuant to such doctrine. *In re Spirit Holding Co., Inc.*, 157 B.R. 883 (Bankr. E.D. Mo. 1993); *In re ATP Oil & Gas Corp.*, Case No. 12-36187 (Bankr. S.D. Tex. August 21, 2012); *In re Cano Petroleum, Inc.*, Case No. 12-31549 (Bankr. N.D. Tex. March 16, 2012); *In re Dynegy Holdings, LLC*, Case No. 11-13686 (Bankr. S.D. N.Y. November 9, 2011); *In re Otero Cnty. Hosp. Ass'n, Inc.*, Case No. 11-13686 (Bankr. D. N.M. September 12, 2011); *In re Paul Transp., Inc.*, Case No. 10-13022 (Bankr. W.D. Okla., May 21, 2010); *In re Stallion Oilfield Services, Inc.*, Case No. 09-13562 (Bankr. D. Del. October 20, 2009); *In re Harold's Stores, Inc.*, Case No. 08-15027 (Bankr. W.D. Okla. November 7, 2008); *In re Rocor Int'l, Inc.*, Case No. 02-17658 (Bankr. W.D. Okla. August 7, 2002).

29. To retain quality, experienced workers, to maintain their morale while this chapter 11 case is pending, and to preserve Debtor's operations during its reorganization and sale process, Debtor should be granted the authority to pay the pre-petition claims of Debtor's employees in the ordinary course of Debtor's business.

30. Debtor believes that substantially all of the amounts Debtor seeks to pay are either entitled to priority claim status under Sections 503, 507(a)(4), and 507(a)(5) (with the exceptions cited herein). Thus, granting the relief sought herein only would affect the timing of

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[2] *See also In re Financial News Network, Inc.*, 134 B.R. 732, 736 (Bankr. S.D. N.Y. 1991) (pre-petition claims may be paid when doing so is "critical to the debtor's reorganization"); *In re Eagle-Picher Indus.*, 124 B.R. 1021, 1023 (Bankr. S.D. Ohio 1991) (payment must be necessary to "avert a serious threat to the Chapter 11 process"); *In re Structurlite Plastics Corp.*, 86 B.R. 922, 931 (Bankr. S.D. Ohio 1988) (payment necessary to "permit the greatest likelihood of survival of the debtor and payment of creditors in full or at least proportionately") (quoting *In re Chateaugay Corp.*, 80 B.R. 279, 287 (S.D. N.Y. 1987)).

herein). Thus granting the relief sought herein only would affect the timing of payment, and not the payment, and not the amount, of these obligations to Debtor's employees to the extent they amount of these obligations to Debtor's employees to the extent they constitute priority claims.

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31. Many employees live from paycheck to paycheck and rely exclusively on receiving their

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receiving their full compensation or reimbursement of their expenses in order to continue to pay expenses. Thus, they will be exposed to significant financial and health related problems if Debtor is

their daily living expenses. Thus, they will be exposed to significant financial and health related not permitted to pay certain of the unpaid employee obligations, particularly wages, salaries and health

problems if Debtor is not permitted to pay certain of the unpaid employee obligations, benefits. Moreover, Debtor believes that if it is unable to honor its pre-petition obligations to

particularly wages, salaries and health benefits. Moreover, Debtor believes that if it is unable to employees, morale and loyalty will be jeopardized at a time when internal business support is critical.

32. Further, if Debtor is not authorized to continue to pay its employees' benefits, then

honor its pre-petition obligations to employees, morale and loyalty will be jeopardized at a time many of Debtor's employees may not be reimbursed or otherwise have its benefits claims paid. In

when internal business support is critical. addition, certain employees may become primarily obligated for the payment of these claims in cases

32. Further, if Debtor is not authorized to continue to pay its employees' benefits, where health care providers have not been reimbursed, and may face having their health services

then many of Debtor's employees may not be reimbursed or otherwise have its benefits claims terminated.

paid. In addition, certain employees may become primarily obligated for the payment of these

33. Debtor believes such uncertainties will cause significant anxiety at precisely the time claims in cases where health care providers have not been reimbursed, and may face having their

Debtor needs its employees to perform their jobs at peak efficiency.

34. Debtor does not intend by this Motion to assume any executory obligations, and this health services terminated.

Motion should not be deemed an assumption or adoption of any agreements or policies providing for

33. Debtor believes such uncertainties will cause significant anxiety at precisely the coverage or any other executory contracts. Rather, Debtor simply intends in its discretion and in the

time Debtor needs its employees to perform their jobs at peak efficiency. exercise of business judgment, subject to this Court's approval, to maintain their current policies

34. Debtor does not intend by this Motion to assume any executory obligations, and pending further business decisions relevant to the maximization of the value of Debtor's assets in this

this Motion should not be deemed an assumption or adoption of any agreements or policies case.

providing for coverage or any other executory contracts. Rather, Debtor simply intends in its discretion and in the exercise of business judgment, subject to this Court's approval, to maintain their current policies pending further business decisions relevant to the maximization of the value of Debtor's assets in this case.

VI. CONCLUSION

WHEREFORE, the Debtor, Foods, Inc. dba Dahl's Foods, requests that this Court enter an Order (i) authorizing Debtor to make payments of all amounts due on account of employee obligations that accrued prepetition; (ii) authorizing Debtor to honor any other terms and conditions of the employment of their employees; (iii) authorizing Debtor's banks to honor such checks and transfers as necessary to effectuate the relief requested herein; and (iv) granting such other relief as this Court may deem just and equitable under the circumstances.

Dated: November 9, 2014

/s/ Jeffrey D. Goetz
Jeffrey D. Goetz, Esq, IS #9999366
Bradshaw Fowler Proctor & Fairgrave, PC
801 Grand, Suite 3700
Des Moines, IA 50309-8004
515/ 243-4191
515/ 246-5808 fax
goetz.jeffrey@bradshawlaw.com
Proposed General Reorganization Counsel for Foods, Inc. dba Dahl's Foods

WHEREFORE, the Debtor, Foods, Inc. dba Dahl's Foods, requests that this Court enter an Order (i) authorizing Debtor to make payments of all amounts due on account of employee obligations that accrued prepetition; (ii) authorizing Debtor to honor any other terms and conditions of the employment of their employees; (iii) authorizing Debtor's banks to honor such checks and transfers as necessary to effectuate the relief requested herein; and (iv) granting such other relief as this Court may deem just and equitable under the circumstances.

Dated: November 9, 2014

/s/ Jeffrey D. Goetz
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Des Moines, IA 50309-8004
515/ 243-4191
515/ 246-5808 fax
goetz.jeffrey@bradshawlaw.com
Proposed General Reorganization Counsel for Foods, Inc. dba Dahl's Foods

VERIFICATION BY COUNSEL FOR DEBTOR

I, Jeffrey D. Goetz, Esq., declare as follows:

1. The matters stated in this Declaration are true and correct and within my own personal knowledge and belief. If called as a witness, I could and would competently testify hereto.
2. I am an attorney licensed to practice law before this court and am the proposed General Reorganization Counsel for the Debtor. I am duly admitted to practice law in the courts of the State of Iowa and in the United States District Court for the Southern District of Iowa.

I declare under penalty of perjury under the laws of the State of Iowa and the laws of the United States that the foregoing is true and correct and is executed this 9th day of November 2014 at Des Moines, Iowa.

VERIFICATION BY COUNSEL FOR DEBTOR

I, Jeffrey D. Goetz, Esq., declare as follows:

1. The matters stated in this Declaration are true and correct and within my own personal knowledge and belief. If called as a witness, I could and would competently testify hereto.
2. I am an attorney licensed to practice law before this court and am the proposed General Reorganization Counsel for the Debtor. I am duly admitted to practice law in the courts of the State of Iowa and in the United States District Court for the Southern District of Iowa.

I declare under penalty of perjury under the laws of the State of Iowa and the laws of the United States that the foregoing is true and correct and is executed this 9th day of November 2014 at Des Moines, Iowa.

VERIFICATION BY CORPORATE OFFICER CRAIG MOORE

Dated: November 9, 2014 /s/ Jeffrey D. Goetz
I, Craig Moore, declare as follows: Jeffrey D. Goetz

1. I am the Chief Executive Officer of the Debtor, Foods, Inc. dba Dahl's Foods.

VERIFICATION BY CORPORATE OFFICER CRAIG MOORE

I, Craig Moore, declare as follows:

The matters stated in this Declaration are true and correct and within my own personal

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2. I have personal knowledge of the facts set forth in the foregoing Motion and, if a witness, I could and would competently testify hereto.

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therein.

witness, I could and would competently testify as to all of the matters stated therein.

I declare under penalty of perjury under the laws of the State of Iowa and the laws of the United States

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Dated: November 9, 2014 /s/ Craig Moore

Dated: November 9, 2014 /s/ Craig Moore
Craig Moore

Craig Moore

CERTIFICATE OF SERVICE

This document was served electronically on parties who receive electronic notice through CM/ECF as listed on CM/ECF's notice of electronic filing.

CERTIFICATE OF SERVICE

/s/ Barbara Warner
Barbara Warner

This document was served electronically on parties who receive electronic notice through CM/ECF as listed on CM/ECF's notice of electronic filing.

/s/ Barbara Warner